

CHAPTER 42.

An Act to regulate the hours of employment of persons under the age of eighteen years who are employed about the business of wholesale or retail shops or employed elsewhere in connection with wholesale or retail trade or business, and to make provision as to the arrangements in shops and warehouses for the health and comfort of workers, and for purposes connected with the matters aforesaid. [25th July 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Employment of Persons under the age of Eighteen Years.

1.—(1) Subject to the provisions of this Act no young person shall be employed about the business of a shop for more than the normal maximum working hours, that is to say, forty-eight working hours in any week.

Hours of
employ-
ment.

(2) On occasions of seasonal or exceptional pressure of work at any shop, young persons between the ages of sixteen and eighteen years may, subject as hereinafter provided, and subject to the provisions of any other enactment, be employed about the business of the shop overtime, that is to say, in excess of the normal maximum working hours :

Provided that in the case of any shop—

(a) when in any year there have been six weeks (whether consecutive or not) in which young persons have been employed overtime about the business of the shop, no young person shall be so employed during the remainder of that year;

(b) no young person shall be employed overtime about the business of the shop—

(i) in any year after he has been employed overtime about the business of

the shop for fifty working hours in that year;

(ii) in any week after he has been employed overtime about the business of the shop for twelve working hours in that week.

(3) In determining for the purposes of this Act the number of working hours for which a young person has in any week or period of two or of three consecutive weeks been employed about the business of any shop, he shall be deemed to have been also employed about the business thereof during any time during which he was in that week or period employed about the business of any other shop or in a factory or workshop:

Provided that, if in any proceedings against the occupier of a shop in respect of a contravention of the provisions of this Act it is shown that the contravention occurred only by reason of time during which a young person was employed by another employer being deemed, in accordance with the provisions of this subsection, to be time during which he was employed about the business of that shop, it shall be a defence to prove that the occupier did not know and could not with reasonable diligence have ascertained that the young person was employed for that time by the other employer.

(4) No young person who has to the knowledge of the occupier of a shop been previously employed on any day in a factory or workshop shall be employed on that day about the business of the shop for a longer period than will, together with the time during which he has been previously employed on that day in the factory or workshop, complete the number of hours permitted by the Factory and Workshop Acts, 1901 to 1929.

(5) In the case of any contravention of the provisions of this section, the occupier of the shop shall be liable on summary conviction to a fine not exceeding ten pounds for every person in respect of whom the contravention occurs.

Power to
regulate
employ-
ment in
shops.

2.—(1) If the Secretary of State is satisfied that it is necessary to make provision for preventing the hours of employment of young persons from being so divided into spells as to deprive them of reasonable opportunities for instruction and recreation, he may make regulations directing that, subject to such exceptions and modifications as may be provided by the regulations, the working

hours of a young person employed shall (notwithstanding anything in the definition of the expression 'working hours' contained in this Act) be deemed, for the purposes of this Act, to include the period from the time at which that person first begins on any day to be employed about the business of a shop until the time at which he last ceases on that day to be so employed, exclusive only—

(a) of such intervals, whether for rest or meals or otherwise; and

(b) of time allowed for attendance at such instructional courses,

as may be specified in the regulations.

(2) Any regulations made under this section shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such regulation has been laid before it resolves that the regulation shall be annulled, the regulation shall forthwith be void, but without prejudice to the validity of anything previously done thereunder or to the making of a new regulation.

3.—(1) A young person who is employed about the business of a shop shall in every period of twenty-four hours between midday on one day and midday on the next day be allowed an interval of at least eleven consecutive hours which shall include the hours from ten o'clock in the evening until six o'clock in the morning :

Restrictions
on night
employ-
ment.

Provided that the said interval of eleven consecutive hours need not include the hour between five and six o'clock in the morning in the case of male persons between the ages of sixteen and eighteen years who are employed during that hour in connection with the collection or delivery of milk or bread or newspapers.

(2) In the case of any contravention of the provisions of this section, the occupier of the shop shall be liable on summary conviction to a fine not exceeding ten pounds for every person in respect of whom the contravention occurs.

4. The foregoing provisions of this Act and the provisions thereof relating to records and the supplementary provisions thereof shall extend to the employment of young persons in connection with any retail trade or

Extension
of foregoing
provisions
to retail
trading

elsewhere
than in
shops.

business carried on in any place not being a shop, and, accordingly, in those provisions, references to employment about the business of a shop shall be deemed to include references to such employment as aforesaid, and, for the purposes of the application of the said provisions to such employment, references in this Act to a shop shall be deemed to include references to the place in or from which the retail trade or business is carried on, and references to the occupier of a shop shall be deemed to include references to the person by whom the retail trade or business is carried on.

Special
provisions
as to the
catering
trade.

5.—(1) The occupier of any shop in which there is carried on the business of serving meals, intoxicating liquors, or refreshments to customers for consumption on the premises may, by exhibiting a notice to that effect, secure that the provisions of this subsection will, during a period of two consecutive weeks specified in the notice, be applicable to that shop, and when such a notice has been duly exhibited in the prescribed form and in the prescribed manner and at such time before the period therein specified as may be prescribed, then—

- (a) a young person between the ages of sixteen and eighteen years whose employment is wholly or mainly in connexion with the said business, shall be deemed, for the purposes of section one of this Act, not to be employed about the business of the shop in excess of the normal maximum working hours in either week of the period specified in the notice, if he is employed about the business thereof neither for more than sixty working hours in either week nor for more than ninety-six hours throughout the period; and
- (b) the provisions of the said section one permitting employment overtime shall not apply during the period specified in the notice in relation to young persons whose employment is such as aforesaid:

Provided that after the provisions of this subsection have been applicable to any shop during twelve such periods beginning in any calendar year, the said provisions shall not again be applicable to the shop in that year.

(2) If the occupier of any shop gives notice that he elects that the provisions of this subsection shall

not be applicable to that shop, then, unless and until the notice is withdrawn, the said provisions shall not be applicable thereto, but as respects business carried on at any shop to which the said provisions are not so rendered inapplicable, proviso (a) to subsection (2) of section one of this Act shall not apply to the overtime employment of persons whose employment is wholly or mainly in connection with the business of serving meals, intoxicating liquors, or refreshments to customers for consumption on the premises, and, if other business is carried on in the shop, the overtime employment of persons in relation to whom this subsection applies shall not be taken into account for the purposes of the application of the said proviso in relation to other young persons :

Provided that, while the provisions of this subsection are applicable to a shop, section one of this Act shall, in relation to any young person so employed in connection with the business aforesaid, have effect as if in proviso (b) to subsection (2) thereof there were inserted the following additional paragraph, that is to say—

(iii) in any period of two consecutive weeks so that he is employed overtime about the business of the shop for more than eight working hours in that period.

(3) A notice given under the last foregoing subsection with respect to any shop, and a notice withdrawing any such notice as aforesaid, shall be given in such form, in such manner, and subject to such conditions as may be prescribed, to the local authority whose duty it is to enforce the foregoing provisions of this Act within the district in which the shop is situated, and any such notice shall take effect on such date after it is given as may be prescribed.

(4) As respects male persons between the ages of sixteen and eighteen years whose employment is wholly or mainly in connexion with the business of serving meals to customers for consumption on the premises, the interval of at least eleven consecutive hours required by section three of this Act need not include any time between ten o'clock in the evening and midnight during which they are wholly employed in connection with that business.

2 & 3 Geo. 5. c. 24. (5) Paragraph (a) of subsection (1) of section one of the Shops Act, 1913, shall cease to have effect as respects young persons to whom the provisions of this Act apply.

2 & 3 Geo. 5. c. 3. (6) The provisions of this Act shall not apply to any person employed in a residential hotel who is not a shop assistant within the meaning of section nineteen of the Shops Act, 1912, or, in the case of a person employed at premises to which the provisions of the Shops Act, 1913, apply, is not wholly or mainly employed there in connection with the business of selling intoxicating liquors or refreshments for consumption on the premises.

Special provisions as to the sale of accessories for aircraft, motor vehicles and cycles.

6.—(1) If the occupier of any shop in which there is carried on the business of serving customers with supplies or accessories for aircraft, motor vehicles, or cycles sold for immediate use gives notice that he elects that the provisions of this subsection shall be applicable to that shop, then, unless and until the notice is withdrawn, in relation to young persons between the ages of sixteen and eighteen years employed in connection with the business aforesaid, the normal maximum working hours shall, instead of being forty-eight working hours in any week, be such number of hours, being neither more than fifty-four in any week nor more than one hundred and forty-four in any period of three consecutive weeks, as may be specified in the notice, and section one of this Act shall have effect accordingly :

Provided that, while the provisions of this subsection are applicable to a shop, section one of this Act shall in relation to any young person employed in connection with the business aforesaid have effect as if in proviso (b) to subsection (2) thereof there were inserted the following additional paragraphs, that is to say—

(iii a) in any week after he has been employed about the business of the shop for fifty-four working hours in that week ;

(iii b) in any period of three consecutive weeks so that he is employed overtime about the business of the shop for more than twelve working hours in that period.

(2) If the occupier of any shop gives notice that he elects that the provisions of this subsection shall not be applicable to that shop then, unless and until the notice

is withdrawn, the said provisions shall not be applicable thereto, but as respects business carried on at any shop to which the said provisions are not so rendered inapplicable, proviso (a) to subsection (2) of section one of this Act shall not apply to the employment of persons employed in connection with the business of serving customers with supplies or accessories for aircraft, motor vehicles or cycles sold for immediate use, and, if other business is carried on in the shop, the overtime employment of persons in relation to whom this subsection applies shall not be taken into account for the purposes of the application of the said proviso in relation to any other young persons :

Provided that, while the provisions of this subsection are applicable to a shop, section one of this Act shall, in relation to any young person employed in connection with the business aforesaid, have effect as if in proviso (b) to subsection (2) thereof there were inserted the following additional paragraph, that is to say—

(iii b) in any period of three consecutive weeks so that he is employed overtime about the business of the shop for more than twelve working hours in that period.

(3) A notice given under subsection (1) or under subsection (2) of this section with respect to any shop and a notice withdrawing any such notice as aforesaid shall be given in such form, in such manner, and subject to such conditions as may be prescribed, to the local authority whose duty it is to enforce the foregoing provisions of this Act within the district in which the shop is situated, and any such notice shall take effect on such date after it is given as may be prescribed.

(4) Where two or more retail trades or businesses are carried on in the same shop and the business of serving customers with supplies or accessories for aircraft, motor vehicles, or cycles sold for immediate use, is not the principal retail trade or business carried on in the shop, the provisions of this section shall apply only in relation to young persons employed about the business of the shop who are wholly or mainly employed in connection with the business of serving customers with such supplies or accessories as aforesaid.

7.—(1) The occupier of any shop about the business of which young persons are employed shall in the

Records.

prescribed form and in the prescribed manner keep a record of the hours worked by, and of the intervals allowed for rest and meals to, every young person employed about the business of the shop, and particulars of all employment overtime shall be separately entered in the record :

Provided that, if the occupier of any shop keeps exhibited in the prescribed manner in the shop or in any department thereof notices in the prescribed form specifying the daily hours to be worked by, and intervals for rest and meals to be allowed to, young persons employed about the business of the shop or of the department, as the case may be, he need only enter in the said record any time during which any such person is employed about the business of the shop or department outside the daily hours so specified or during the intervals so specified, so, however, that any such time shall be entered as, and shall be deemed to be, overtime, unless the time was worked by that person in lieu of time not worked by him during the same week within the specified daily hours, and both the time not so worked and the time worked in lieu thereof are entered in the record.

(2) The occupier of any shop about the business of which young persons are employed shall in the prescribed form and in the prescribed manner keep exhibited in the shop notices setting forth the number of hours in the week during which young persons may in accordance with the provisions of this Act be employed about the business of the shop and such other particulars as may be prescribed.

(3) The provisions of the last foregoing subsection shall not apply as respects any place in which retail trade or business is carried on, not being a shop.

(4) In the case of any contravention of the foregoing provisions of this section, the occupier of the shop shall be liable on summary conviction to a fine not exceeding five pounds for every day on which the contravention occurs or continues.

(5) If any person with intent to deceive makes, or causes or allows to be made, in any such record or notice as aforesaid an entry which is to his knowledge false in any material particular, or wilfully omits or causes or allows to be omitted from any such record or notice an entry required to be made therein he shall be liable on

summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding twenty pounds, or to both such imprisonment and fine.

8. The foregoing provisions of this Act shall not apply to the employment of persons in or about a theatre except in relation to young persons employed wholly or mainly in connection with any retail trade or business carried on in the theatre; and the said provisions shall, in their application to such young persons, be subject to the modification that, in the case of a person between the ages of sixteen and eighteen years employed in a theatre where a performance is taking place which begins before and ends after ten o'clock in the evening, the interval of at least eleven consecutive hours required by section three of this Act need not include any time between ten o'clock in the evening and the time at which the performance ends.

Special provision as to theatres.

9.—(1) For the purposes of the provisions of section one of the Shops Act, 1912, and of the First Schedule to that Act, every young person who is wholly or mainly employed about the business of a shop or in connection with any retail trade or business carried on in any place not being a shop shall be deemed to be a “shop assistant,” and in those provisions and in this section that expression shall be construed accordingly.

Weekly half-holidays and intervals for meals.

(2) Subsection (1) of the said section one (which relates to weekly half-holidays) shall not apply to any young person in any week unless he is employed as a shop assistant for more than twenty-five hours in that week and shall not apply to the employment of any young person in a theatre in any week (notwithstanding that he may be employed as a shop assistant for more than twenty-five hours in that week) if he is not employed in the theatre before midday on any day in that week.

(3) If in any proceedings against any person in respect of a contravention of the provisions of subsection (1) of the said section one in relation to any young person it is shown that the young person was not so employed by him in the week in which the contravention occurred as to render that subsection applicable to the young person, it shall be a defence to prove that he did not know, and could not with reasonable diligence

have ascertained, that the young person was also employed in that week as a shop assistant by some other employer.

(4) In the application of the provisions of section one of the Shops Act, 1912, and of the First Schedule to that Act, to young persons, the expression "shop" shall have the same meaning as in this Act, and those provisions shall, in their application to persons employed in connection with any retail trade or business carried on in any place not being a shop, have effect subject to the following modifications, that is to say,—

(a) subsection (2) of the said section one (which relates to the posting of notices) shall not apply;

(b) references to "employment about the business of a shop" shall be deemed to include references to employment in connection with any retail trade or business carried on in any place not being a shop, references to "a shop" shall be deemed to include a reference to the place in or from which the retail trade or business is carried on, and references to "the occupier of a shop" shall be deemed to include references to the person by whom the retail trade or business is carried on.

(5) The First Schedule to the Shops Act, 1912, shall, in the application thereof to young persons, have effect as if for the words "six hours" there were substituted the words "five hours or, on the day of the week on which he is not to be employed after half-past one o'clock, five and a half hours."

Arrangements for Health and Comfort of Shop Workers.

Provisions
as to
sanitary
or other
arrange-
ments in
shops.

10.—(1) In every part of a shop in which persons are employed about the business of the shop—

(a) suitable and sufficient means of ventilation shall be provided and suitable and sufficient ventilation shall be maintained;

(b) suitable and sufficient means shall be provided to maintain a reasonable temperature and a reasonable temperature shall be maintained.

(2) In every shop, not being a shop exempted from the provisions of this subsection, there shall be provided

and maintained suitable and sufficient sanitary conveniences available for the use of persons employed in or about the shop.

(3) In every part of a shop in which persons are employed about the business of the shop, suitable and sufficient means of lighting shall be provided, and every such part of a shop shall be kept suitably and sufficiently lighted.

(4) In every shop, not being a shop exempted from the provisions of this subsection, there shall be provided and maintained suitable and sufficient washing facilities available for the use of persons employed in or about the shop.

(5) Where persons employed about the business of a shop take any meals in the shop, there shall be provided and maintained suitable and sufficient facilities for the taking of those meals.

(6) A shop shall be exempted from the provisions of subsection (2) or of subsection (4) of this section if there is in force a certificate exempting that shop therefrom granted by the authority whose duty it is to enforce those provisions, respectively, and any such certificate shall remain in force until it is withdrawn by the authority, but no such certificate shall be granted with respect to any shop unless the authority are satisfied that by reason of restricted accommodation or other special circumstances affecting the shop it is reasonable that such a certificate should be in force with respect thereto, and that suitable and sufficient sanitary conveniences or washing facilities, as the case may be, are otherwise conveniently available, and, subject as hereinafter provided, a certificate in force with respect to any shop shall be withdrawn if the authority at any time cease to be so satisfied as aforesaid :

Provided that, if the occupier of a shop is aggrieved by the withdrawal of such a certificate, he may appeal to the county court for the district in which the shop is situated and that court may make such order concerning the certificate as appears to the court, having regard to the matters aforesaid, to be just and equitable.

(7) If it appears to the authority whose duty it is to enforce any provision of this section that there has been, in the case of any shop, a contravention of that provision, the authority shall, by notice served on the

owner or occupier of the shop, require him to take, within such time as may be limited by the notice, such action as may be specified in the notice for the purpose of securing compliance with the said provision, and, if any person served with such a notice fails to comply with the requirements thereof, he shall be liable on summary conviction to a fine not exceeding twenty pounds, or in the case of a second or subsequent conviction in respect of the same requirement, to a fine not exceeding fifty pounds or five pounds for every day since the first conviction in respect of that requirement, whichever is the greater:

Provided that it shall be a defence to any proceedings under this subsection to prove that there was no contravention of the provisions of this section, or that the requirements of any such notice as aforesaid were, within a reasonable time after service of the notice, complied with in so far as they were necessary to secure compliance with the provisions of this section.

Apportionment of expenses.

11. If any person, being either the owner or the occupier of a shop, who has incurred or is about to incur any expense for the purpose of securing that the requirements of the last foregoing section are complied with with respect to the shop, alleges that the whole or any part of the expense ought to be borne by any other person having an interest in the premises, he may apply to the county court for the district in which the shop is situated and that court may make such order concerning the expenses or their apportionment as appears to the court, having regard to all the circumstances of the case, including the terms of any contract between the parties, to be just and equitable, and any order made under this section may direct that any such contract as aforesaid shall cease to have effect in so far as it is inconsistent with the terms of the order.

Amendment of 2 & 3 Geo. 5. s. 3.

12. Subsection (1) of section three of the Shops Act, 1912 (which relates to the provision of seats for female shop assistants), shall have effect as if there were inserted at the end thereof the words "and it shall be the duty " of the occupier of the shop to permit the female shop " assistants so employed to make use of such seats " whenever the use thereof does not interfere with their

“ work, and the occupier shall in the prescribed manner
 “ and in the prescribed form give notice informing such
 “ shop assistants that they are intended to do so.”

Supplementary.

13.—(1) Sections thirteen and fourteen of the Shops Act, 1912, which relate to the enforcement of that Act, shall apply with respect to the provisions of this Act as they apply with respect to the provisions of that Act, save that in the said sections the word “shop” shall, in their application with respect to the provisions of this Act, have the same meaning as in this Act and shall, in relation to the provisions of this Act which apply to retail trade or business carried on in any place not being a shop, include a reference to any such place:

Provided that the said sections shall not apply—

- (a) with respect to the provisions of this Act in their application to street trading;
- (b) with respect to the provisions of this Act relating to ventilation and temperature of shops and to sanitary conveniences.

(2) It shall be the duty of the local authority having power under the Children and Young Persons Act, 1933, to enforce the provisions of that Act as to street trading to enforce, as part of their duties under that Act, the provisions of this Act in their application to street trading.

(3) It shall be the duty of the sanitary authority for every district as part of their duties under the Public Health Acts to enforce the provisions of this Act relating to ventilation and temperature of shops, and to sanitary conveniences, and any inspector appointed by such an authority shall for the purposes of his powers and duties have in relation to shops all the powers conferred in relation to factories and workshops on inspectors by section one hundred and nineteen of the Factory and Workshop Act, 1901, and that section and section one hundred and twenty-one of the same Act shall apply accordingly.

(4) Notwithstanding that the provisions of this Act relating to ventilation and temperature of shops and to sanitary conveniences are not enforceable by local authorities under the provisions of the Shops Act, 1912, it shall nevertheless be the duty of inspectors appointed

Enforce-
ment.

23 & 24
Geo. 5. c. 12.

1 Edw. 7.
c. 22.

under that Act to take note of and if necessary report to the sanitary authority for the district any contravention of the said provisions of this Act, and for that purpose the provisions of section thirteen of the Shops Act, 1912, relating to such inspectors shall apply accordingly.

Provisions
as to birth
certificates.

14. Where the age of any person is required to be ascertained or proved for the purposes of this Act, any person shall, on presenting a written requisition in such form and containing such particulars as may be from time to time directed by the Registrar-General and on payment of a fee of sixpence, be entitled to obtain a certified copy under the hand of a registrar or superintendent registrar of the entry in the register under the Births and Deaths Registration Acts, 1836 to 1929, of the birth of that person; and such a form of requisition shall on request be supplied without charge by every registrar and superintendent registrar of births, deaths and marriages.

Interpreta-
tion and
saving.

15.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“Contravention” in relation to any provision includes any failure to comply with that provision:

“Enactment” includes any Act, and any rule, regulation, byelaw or order made under any Act:

“Factory” and “workshop” have respectively the same meanings as in the Factory and Workshop Act, 1901:

“Owner,” in relation to any premises, has the same meaning as in the Public Health Act, 1875:

“Prescribed” means prescribed by regulations made under section seventeen of the Shops Act, 1912:

“Public Health Acts” means the Public Health Acts, 1875 to 1932, or the Public Health (London) Acts, 1891 to 1932, as the case may be:

“Residential hotel” means premises used for the reception of guests and travellers desirous of dwelling or sleeping therein:

“Sanitary authority” means, save as respects London, the council of a county borough or

38 & 39 Vict.
c. 55.

county district, and as respects London the sanitary authority for the purposes of the Public Health (London) Act, 1891 : 54 & 55 Vict.
c. 76

“ Shop ” means a shop as defined by the Shops Act, 1912, and any wholesale shop and includes any warehouse occupied for the purposes of his trade by any person carrying on any retail trade or business or by any wholesale dealer or merchant :

“ Suitable and sufficient ” means, in relation to any shop or part of a shop, suitable and sufficient having regard to the circumstances and conditions affecting that shop or part :

“ Theatre ” includes any place used for the exhibition of pictures or other optical effects by means of a cinematograph or other suitable apparatus and any music hall or other similar place of entertainment; and “ performance ” has a corresponding meaning :

“ Wholesale shop ” means premises occupied by a wholesale dealer or merchant where goods are kept for sale wholesale to customers resorting to the premises :

“ Working hours ” means the time during which the persons employed are at the disposal of the employer, exclusive of any intervals allowed for rest and meals; and “ hours worked ” has a corresponding meaning :

“ Year ” means the period between midnight on the last Saturday night in the month of December and midnight on the last Saturday night in the next month of December :

“ Young person ” does not include a child whose employment is regulated by section eighteen of the Children and Young Persons Act, 1933, but save as aforesaid means a person who has not attained the age of eighteen years ;

and, save as in this Act otherwise expressly provided, expressions defined by the Shops Act, 1912, have the same meanings as in that Act.

(2) For the purposes of this Act a person who works about the business of a shop for the occupier thereof or in connection with any retail trade or business

for the person by whom it is carried on, shall be deemed to be employed, notwithstanding that he receives no reward for his labour.

(3) For the purposes of this Act a person shall be deemed to be between any two ages therein mentioned if he has attained the first-mentioned age but has not attained the second-mentioned age.

(4) For the purposes of this Act employment in connection with a wholesale shop or a warehouse occupied by a wholesale dealer or merchant which is neither—

(a) employment within the premises, nor

(b) employment in the collection or delivery of goods or in attendance upon customers or in carrying messages or running errands,

shall not be deemed to be employment about the business of a shop; but, save as aforesaid, any employment in the service of the occupier of a shop upon any work, whether within the shop or outside it, which is ancillary to the business carried on at the shop shall be deemed to be employment about the business of the shop, and that expression shall be construed accordingly.

(5) Except the provisions of subsection (3) and subsection (4) of section one of this Act in so far as they relate to employment in a factory or workshop, nothing in this Act shall apply with respect to the employment of persons whose hours of employment are regulated by or under the Factory and Workshop Acts, 1901 to 1929.

Temporary
modifica-
tions of
limitations
imposed by
Act on
working
hours.

16. Until the twenty-seventh day of December, nineteen hundred and thirty-six, the provisions of this Act mentioned in the first column of the Schedule to this Act shall have effect as if for the references therein mentioned in the third column of that Schedule there were respectively substituted the references mentioned in the fourth column thereof :

Provided that where a period of two or of three consecutive weeks specified in a notice exhibited or given as respects any shop under subsection (1) of section five, or under subsection (1) of section six of this Act comprises the twenty-sixth day of December, nineteen hundred and thirty-six, then, as respects that shop, the substituted references in that subsection which are mentioned in the said Schedule shall continue to have effect until the expiration of that period.

17. This Act shall apply to Scotland subject to the following modifications :— Application to Scotland.

- (a) For any reference to a county court there shall be substituted a reference to a sheriff court, and the expression "exciseable liquors" shall be substituted for the expression "intoxicating liquor":
- (b) References to provisions of the Shops Act, 1912, shall be construed as references to those provisions as applied to Scotland by section twenty of that Act:
- (c) For any reference to the Public Health Act, 1875, there shall be substituted a reference to the Public Health (Scotland) Act, 1897: 60 & 61
Vict. c. 38.
- (d) For any reference to section eighteen of the Children and Young Persons Act, 1933, there shall be substituted a reference to sections forty-three and forty-four of the Children and Young Persons (Scotland) Act, 1932: 22 & 23
Geo. 5. c. 47.
- (e) Subsection (2) of section thirteen shall have effect as if for the local authority and the provisions of the Children and Young Persons Act, 1933, therein mentioned there were respectively substituted references to the local authority for the purposes of the Shops Act, 1912, and the provisions of that Act; and paragraph (a) of the proviso to subsection (1) of the said section shall not apply:
- (f) Subsections (3) and (4) of section thirteen shall have effect as if for references to the Public Health Acts and the sanitary authority there were respectively substituted references to the Public Health (Scotland) Acts, 1897 to 1907, and the local authority for the purposes of these Acts (other than the provisions thereof mentioned in the First Schedule to the Local Government (Scotland) Act, 1929): 19 & 20
Geo. 5. c. 25.
- (g) Section fourteen shall have effect as if for references to the Registrar-General and the Births and Deaths Registration Acts 1836 to 1929 there were respectively substituted references to the Registrar-General for Scotland and the Births, Deaths and Marriages (Scotland) Acts, 1854 to 1934, and as if any reference to a superintendent registrar were omitted.

Short title,
citation,
extent and
repeal.

18.—(1) This Act may be cited as the Shops Act, 1934, and this Act and the Shops Acts, 1912 to 1928, may be cited together as the Shops Acts, 1912 to 1934.

(2) This Act shall not extend to Northern Ireland.

(3) Section two of the Shops Act, 1912, is hereby repealed.

(4) This Act shall come into operation on the thirtieth day of December, nineteen hundred and thirty-four.

SCHEDULE.

Section 16.

TEMPORARY MODIFICATION OF REFERENCES TO WORKING HOURS.

Provision of Act.	Subject matter.	References for which substitution is to be made.	Substituted references.
Section one	Hours of employment.	48 working hours 50 working hours 12 working hours 96 working hours	52 working hours. 24 working hours. 8 working hours. 104 working hours.
Subsection (1) of section five.	Special provisions as to the catering trade.		
Subsection (2) of section five.	Special provisions as to the catering trade.	8 working hours	4 working hours.
Subsection (1) of section six.	Special provisions as to the sale of accessories for aircraft, motor-vehicles, and cycles.	48 working hours 54 working hours 144 working hours 12 working hours	52 working hours. 58 working hours. 156 working hours. 6 working hours.
Subsection (2) of section six.	Special provisions as to the sale of accessories for aircraft, motor-vehicles, and cycles.	12 working hours	6 working hours.